



Maritime &
Coastguard
Agency

Guidance

MGN 70 (M) Amendment 1

Guidelines on responsibilities for resolution of stowaway cases

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1. Summary

1.1. This notice sets out the guidelines that UK registered vessels transiting towards the UK, non-UK vessels in UK waters and UK port facilities should adhere to following the discovery of stowaways, to ensure both the operational safety of the ship or port and the safety and wellbeing of the stowaway. It also serves to remind ships and port facilities of their obligations to reduce the risk of unauthorised embarkations.

Amends made from version MGN 70 (M)

This amendment includes a new reporting procedure, a reminder of existing measures ships and ports should take to prevent stowaways boarding a vessel, a reminder of the measures to be taken to promote and enhance the wellbeing of stowaways and underlines the importance for authorities to co-operate as closely as possible to ensure swift resolution of stowaway incidents.

Key points

- Those discovering a stowaway incident on board a UK registered vessel transiting towards the UK or non-UK vessel in UK waters or at a UK port facility should notify the relevant authorities and are recommended to use the form at Appendix 1 of this notice to submit further details. Contact details can be found at Section 3 of this notice.

- UK registered ships and port facilities (international and domestic) are reminded of their obligations to implement appropriate measures to reduce unauthorised embarkations. Ships should conduct adequate searches of spaces prior to leaving a port, taking into consideration the places where stowaways might hide, in accordance with the vessel's Ship Security Plan (SSP).
- Shipowners, Masters and port facilities should ensure an early return or repatriation of the stowaway(s), ensure their wellbeing throughout, and comply with any instructions given by relevant authorities.
- Authorities and persons concerned should co-operate as closely as possible to resolve stowaway cases.

2. Introduction and definitions

2.1. The number of incidents involving stowaways have increased in recent years and pose considerable risks for stowaways, as well as impacting on the safe operation of ships and causing disruption to maritime traffic.

2.2 This notice identifies the procedure to contact a UK 'appropriate officer' as set out in Section 15(8) of the Aviation and Maritime Security Act 1990, which ships and port facilities should use to report stowaway incidents and pass on related information in accordance with legislation.

2.3. The term "stowaway" in this notice refers to the commonly recognised definition included within the Convention on Facilitation of International Maritime Traffic, 1965, as amended (the "FAL Convention") as follows.

Definition of 'stowaway' as defined in the FAL Convention

A person who is secreted on a ship, or in cargo which is subsequently loaded on the ship, without the consent of the shipowner or the master or any other responsible person and who is detected on board the ship after it has departed from a port, or in the cargo while unloading it in the port of arrival, and is reported as a stowaway by the master to the appropriate authorities.

3. Reporting instructions

3.1 Masters, shipowners and UK port staff discovering a stowaway incident on board a UK registered vessel transiting towards the UK, a non-UK vessel intending to visit UK ports with stowaways on board, or at a UK port facility should notify the UK authorities as follows:

02392 212207

UKstowawayreporting@homeoffice.gov.uk

The officials contacted will ensure that relevant UK agencies and departments are quickly informed as appropriate.

3.2 Ports should continue to notify the Department for Transport (Maritime Security Division) at maritimesecurity@dft.gov.uk upon discovery of a stowaway incident. The Vessel Master and/or shipowner should also inform their point of contact at the UK port.

3.3 Masters should take practicable steps to establish as much information as possible about the stowaway including their identity, nationality/citizenship and port of embarkation. The existence of the stowaway(s) should be reported to the relevant authorities. We would recommend that shipping crews and port staff complete the form at Appendix 1 of this notice and send to the details above as soon as possible after discovery. The form is also at Appendix 2 of the FAL Convention and Resolution MSC.448(99).

4. Preventative measures

4.1. Ship owners, masters and port authorities should adhere to measures outlined in existing legislation and international guidance. Legislative instruments include the FAL Convention (Section 4), Resolution MSC.448(99), Resolution FAL.13(42), the International Ship and Port Facility Security (ISPS) Code, the International Convention for the Safety of Life at Sea (SOLAS), the Ship and Port Facility (Security) Regulations 2004 and the Merchant Shipping Act 1995 which are designed to prevent stowaways from boarding vessels, and facilitate resolutions of stowaway cases through close cooperation between the flag state, shipowners, operators, charterers, managers, shipping agents, port authorities, masters and ship's officers. This Guidance Note is not a substitute for evaluating existing legislation carefully.

4.2. Port authorities are reminded:

- to take all reasonable precautions to prevent stowaways gaining access to vessels
- to ensure the infrastructure, operational and security arrangements for the purpose of preventing persons attempting to stowaway on board ships from gaining access to port installations and to ships is installed in ports
- that ports have responsibilities under the ISPS Code for controlling access to the ship; controlling the embarkation of persons and their effects; monitoring restricted areas to ensure that only authorised persons have access and monitoring of deck areas and areas surrounding the ship
- to have the operational arrangements and/or port facility security plans equivalent to those contained in the relevant text of sections B/9 and B/16 of the ISPS Code
- to implement restricted areas in ports

4.3. Shipowners and masters are reminded:

- to take all reasonable precautions to prevent stowaways gaining access to vessels
- that ships have responsibilities under the ISPS Code for controlling access to the ship; controlling the embarkation of persons and their effects; monitoring restricted areas to ensure that only authorised persons have access and monitoring of deck areas and areas surrounding the ship
- that shipowners and masters, as well as other responsible persons have security arrangements in place which, as far as practicable, will prevent intending stowaways from getting aboard to the ships, and, if this fails, as far as practicable, will detect them before the ship leaves port
- that vessels due to leave a port have undergone a thorough search in accordance with a specific plan or schedule with priorities given to places where stowaways might hide taking into account the specific ship type and its operations. Search methods which are likely to harm secreted stowaways should not be used
- to implement restricted areas on board vessels

4.4. The following activities shall be carried out, through appropriate measures, on all ships, taking into account the guidance given in part B of the ISPS Code, in order to identify and take preventive measures against security incidents:

- ensuring the performance of all ship security duties

- controlling access to the ship
- controlling the embarkation of persons and their effects
- monitoring restricted areas to ensure that only authorized persons have access
- monitoring of deck areas and areas surrounding the ship
- supervising the handling of cargo and ship's stores
- ensuring that security communication is readily available.

4.5 Where there is an increased risk of stowaway embarkation, such as calling or staying in port, operational arrangements and/or ship security plans should at least be equivalent to those contained in the relevant text of paragraph B/9 of the ISPS Code. The Ship Security Assessment (SSA) should consider unauthorised access or use, including presence of stowaways.

4.6. For further information please consult Part A, section 7 of the ISPS Code and section 4 of the FAL Convention.

5. Disembarkation

5.1 Authorities should note Resolution FAL. 13(42) adopted on 08 June 2018 which states:

- Every effort should be made to avoid situations where a stowaway has to be detained on board a ship indefinitely. In this regard States should cooperate with the shipowner in arranging the disembarkation of a stowaway to an appropriate State.

5.2 It is the responsibility of the State of first port of call according to the voyage plan after the discovery of the stowaway to:

- accept the stowaway for examination in accordance with the national laws of that State and, where the competent national authority considers that it would facilitate matters, to allow the shipowner and the competent or appointed Protection and Indemnity (P&I) Club correspondent to have access to the stowaway
- favourably consider allowing disembarkation

5.3 It is the responsibility of the flag State of the ship:

- to be willing, if practicable, to assist the master/shipowner or the appropriate authority at the port of disembarkation in identifying the stowaway and determining his or her nationality/citizenship or right of residence
- to be prepared to make representations to the relevant authority to assist in the removal of the stowaway from the ship at the first available opportunity
- to be prepared to assist the master/shipowner or the authority at the port of disembarkation in making arrangements for the removal or repatriation of the stowaway, and
- to report incidents of stowaways of which they become aware to the Organization.

5.4 When the disembarkation of a stowaway has not been possible at the first port of call, it is the responsibility of the State of the subsequent port of call to follow the guidance provided in paragraph 5.3 of Resolution FAL. 13(42).

5.5 If disembarkation is refused by the port authorities of another state on a UK-flagged vessel, the Master or crew should notify the UK flag State of the reasons for refusing disembarkation at maritimesecurity@dft.gov.uk.

6. Wellbeing of stowaways

6.1. Due consideration must always be given to the wellbeing of stowaways, a principle enshrined in existing legislation. The following must be adhered to:

- Stowaway incidents should be dealt with in a manner consistent with humanitarian principles. Due consideration must always be given to the operational safety and security of the ship and to the safety and wellbeing of the stowaway.
- Masters, shipowners, public authorities, port authorities and other stakeholders should take appropriate measures to avoid situations where stowaways stay on board ships for an unreasonable amount of time.

7. Fumigation of holds

7.1. Adequate, frequent and well-timed searches of holds should be carried out, especially when a hold is to be sealed and/or fumigated. This might minimize the risk of having to deal with a stowaway case and might also save the life of the stowaway.

8. Cooperation between authorities

8.1 Port authorities, shipowners and masters should co-operate to the fullest extent possible with public authorities to resolve stowaway cases expeditiously and ensure that an early return or repatriation of the stowaway will take place.

9. Useful links

9.1. Resolution FAL.13(42) adopted 08 June 2018 is available here:
[https://wwwcdn.imo.org/localresources/en/OurWork/Facilitation/PublishingImages/Pages/Default/RESOLUTION%20FAL.13\(42\).pdf](https://wwwcdn.imo.org/localresources/en/OurWork/Facilitation/PublishingImages/Pages/Default/RESOLUTION%20FAL.13(42).pdf)
([https://wwwcdn.imo.org/localresources/en/OurWork/Facilitation/PublishingImages/Pages/Default/RESOLUTION%20FAL.13\(42\).pdf](https://wwwcdn.imo.org/localresources/en/OurWork/Facilitation/PublishingImages/Pages/Default/RESOLUTION%20FAL.13(42).pdf))

9.2. Resolution MSC.448(99) adopted on 24 May 2018 is available here:
[https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.448\(99\).pdf](https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.448(99).pdf)
([https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.448\(99\).pdf](https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.448(99).pdf))

9.3. The Ship and Port Facility (Security) Regulations 2004 is available here: <https://www.legislation.gov.uk/ukxi/2004/1495/contents/made>
(<https://www.legislation.gov.uk/ukxi/2004/1495/contents/made>)

More information

The Department for Transport
Great Minster House
Westminster
London
SW1P 4DR

Telephone: +44 (0) 300 330 3000

Email: maritimesecurity@dft.gov.uk

Website: <https://www.gov.uk/government/organisations/department-for-transport> (<https://www.gov.uk/government/organisations/department-for-transport>)

Please note that all addresses and telephone numbers are correct at time of publishing.

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